

3	23-01365328 <i>Almaraz-Ramirez vs. Walmart Inc.</i>	1) Motion for Protective Order 2) Motion to Compel Deposition (Oral or Written) Defendant Walmart, Inc.’s Motion for Protective Order and Plaintiff Alicia Almaraz-Ramirez’s Motion to Compel the Deposition of Grisel (Grey) Granados are CONTINUED to . Defendant is ORDERED to file “Doctor’s Note re: Grisel Granados, attached at Exhibit B to the Declaration of Timothy J. Denham, Esq. in support of Defendant’s Motion for Protective Order” with the Court within 5 days of this order. The Court does not have the note counsel represented they would be filing confidentially. The Court deems the note necessary to the disposition of these Motions.
6	25-01493428 <i>Black Diamond Networks LLC vs. Linear Microsystems Inc</i>	Motion to Set Aside/Vacate Default Defendant Linear Microsystems, Inc.’s motion to set aside the default entered on January 28, 2026, is GRANTED. Defendant seeks discretionary relief from the default under Code of Civil Procedure Section 473, subdivision (b) which provides in pertinent part: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Defendant’s authorized agent, Patricia Cocco, has submitted a declaration in support of the Motion. Cocco states on August 26, 2025, she learned that a process server had delivered legal documents for Defendant. (Cocco Decl., ¶ 2.) Cocco contacted attorney Mark T. Risner to resolve the matter informally but did not retain him to appear in court, accept service, or file a response. (Cocco Decl., ¶ 3.) On September 8, 2025, Risner informed Cocco he had contacted Plaintiff’s attorney and asked them not to take a default while the parties attempted to resolve the matter. (Cocco Decl., ¶ 4.) Over the following months, Plaintiff’s office continued sending courtesy notices to Risner, including notices on December 2, 2025, and January 15, 2026, which Cocco understood to mean the case was still active and that Plaintiff was not seeking a default. (Cocco Decl., ¶ 5.) On January 22, 2026, Cocco called Plaintiff’s office directly because she was trying to understand the amount Plaintiff was demanding and whether a payment plan was possible. (Cocco Decl., ¶ 7.) Cocco believed the matter was still being discussed and that Defendant would be allowed to respond once negotiations were concluded. (Cocco Decl., ¶ 9.) These facts are sufficient to show surprise and excusable neglect. Therefore, relief from default is warranted.